THE REPUBLIC OF CORTESIA DEL MAR
SUPREME COURT

EX PARTE
BRICKWALLGAMING

CASE DETAILS

CASE NUMBER: 7
COURT: IceCarim CJ and CommradePotatoe J
DATE: 9 February 2025 (GMT)

CASE TEXT:

IceCarm:
Leave for direct access is granted to @BrickwallGaming for his request
@National Forum sorry for the ping, but we invite interested MFs to volunteer to serve as an Acting Justice in this matter

Brick_WallGaming:
Hello!

CommradePotatoe:
Hello Mr petitioner

Brick_WallGaming:
I want to make it clear that while i'm the one making this request, i dont actually have any particularly strong opinion one way or the other. I simply want to know what the Courts think should happen in this scenario. I think if the court is willing to entertain a hypothetical scenario, the president should probably just defer the job of accepting sucessful NF applicants to the Vice President

CommradePotatoe
Thank you
Our first line of questioning will likely revolve around whether we can actually consider complete hypotheticals
Also, it’s completely okay to not hold a strong opinion on a case. We welcome all input regardless!

Brick_WallGaming:
np! this is my first time actually significantly contributing to the legal system so i hope this is fun haha

CommradePotatoe:
I imagine it will be. There's a lot to consider and both justices (and hopefully a third :cortesiangel:) will be sitting on it.

IceCarim:
We will now hear arguments in case number 7, Ex Parte BrickWallGaming
Interested parties are called upon to make their submissions on the following questions:
Whether a Cortesian Court may issue an advisory opinion on a hypothetical question.
If so, the constitutional position when the President is not able to perform her constitutional obligations on a weekend throughout her presidency.

CommradePotatoe:
I'd like to ask all interested parties if they think the court should be able to answer any hypothetical, or if there should be certain boundaries to what a court can and cannot hear?

AlzuCats:
I'd argue that there should be boundaries. It would be a waste of the court's time to discuss certain hypotheticals, such as clearly frivolous ones like "Can a dog hold the office of president?"

IceCarim:
Great submission

CommradePotatoe:
Thank you Alzu! If I can ask further, how do you think those bounds should be set?

AlzuCats:
I'm not sure but the court should probably try to lean towards not impeding legitimate hypotheticals

But I suppose that brings up the questions of how to define what is legitimate or frivolous

CommradePotatoe:
Indeed it does. When I look at your example, the big difference between a dog hypothetically running for president and a president being unavailable for the weekends is that the latter is not unrealistic and plausible.
Do you think that plausibility would be the defining attribute, or is that alone not enough to grant entryway for consideration

AlzuCats:
I think it would be. Although I'm struggling to think of any other attributes. They could exist though... If they do exist I hope someone brings them up

Oko:
this seems cyclical though. who determines the plausibility of a hypothetical circumstance? a jury?

CommradePotatoe
Very good question President oko. Who determines what is and isn't plausible? Should this court be empowered to make that decision when considering case requests?

Vortexion:
The yap is crazy
If someone makes a non-serious question, send them to Cadia and I'll shoot them in the back of the head over a beautiful sunset and let their body gracefully drop into the cold embrace of lake Peigneur
So easy

CommradePotatoe:
Thank you mr Infrastructure Director. Would you say that making a non serious request warrants criminal prosecution?

Vortexion:
It is my sincere belief that a non-serious request may be grounds for criminal prosecution, yes

_s1ice:
could there possibly be a vote of some sort from a collective body
like the NF or cabinet in accordance with the judiciary

CommradePotatoe:
As in the forum?

Vortexion:
Dare I say it may also be grounds for euthanasia

CommradePotatoe:
Consider this section of the constitution. 105 tells us that national legislation can regulate how the court conducts itself. As it stands, no law defines any court procedures, so it'd ultimately be up to the chief justice. If a law were passed that regulated which cases were and weren't allowed, would that constitute "court procedures"?
Image

_s1ice:
i would assume so, yes

IceCarim:
Definitely not

Tinpot:
I didn't know you were submitting arguments mr carim :redone:

IceCarim:
I don't think this one is up for argument because of how clear the answer is
The court decides what its jurisdiction is
What it can hear or can't hear
Legislation can determine how these cases are brought to us and under what procedure
But it definitely cannot instruct us on what to hear

jurisdictional that is applicable to courts. In the judicial context, there *is* a meaningful line: Whether the court decided *correctly* is a question that has different consequences from the question whether it had the power to decide *at all*. Congress has the power (within limits) to tell the courts what classes of cases they may decide, see *Trainmen* v. *Toledo, P. & W. R. Co.*, 321 U. S. 50, 63–64 (1944); *Lauf* v. *E. G. Shinner & Co.*, 303 U. S. 323, 330 (1938), but not to prescribe or superintend how they decide those cases, see *Plaut* v. *Spendthrift Farm, Inc.*, 514 U. S. 211, 218–219 (1995). A court's power to decide a case is independent of whether its decision is correct, which is why even an erroneous judgment is entitled to res judicata effect. Put differently, a jurisdictionally proper but substantively incorrect judicial decision is not ultra vires.

But see

(3) The judicial authority of the Republic vests in the courts. In exercising this authority, courts have the power and responsibility, subject to this Constitution, to hear any matter brought before them that—

(i) engages Cortesian jurisdiction; and

(ii) can be resolved by applying Cortesian law.

(4) A decision of a court binds all parties to which it applies

CommradePotatoe:

I'd say this resolves any dispute about who determines whether the court hears or doesn't hear a case

(4) The Supreme Court—

(a) may hear any matter—

(i) arising on appeal from the Common Court;

(ii) brought to it directly, if this is in the interests of justice;

(iii) engaging its exclusive jurisdiction as set out in Subsection (5); or

(iv) referred to it by the Common Court in terms of Section 108(1); and

(b) must hear any matter referred to it by the Common Court in terms of Section 108(2).

IceCarim:
If you look a little further down

CommradePotatoe:
yes yes

IceCarim:
I think it says that the Supreme Court decides what is in its exclusive jurisdiction as well

CommradePotatoe:
oh not what I was thinking but yes

IceCarim:
But yeah that's what I thought, but I'm still interested if any one has an argument to the contrary
Any submissions on the second question: the situation when the president is not available to perform her duties on weekends?
Do we have to appoint an acting president every time?
Is there some form of transfer of powers?

CommradePotatoe:
:cortesiangel:

Brick_WallGaming
i beleive it should just defer to the vice president.
It's the simplest solution, and the President would not have chosen the person as her VP if she did not trust them.

CommradePotatoe:
Should we view this presidential absence as being different from the president sleeping or simply unavailable

Birck_WallGaming
in this hypothetical scenario where it was 100% consistent, imo yes
the scenario isnt just "sorry was busy this weekend" it's "i do not have a single second of free time every weekend ever"

Oko:
I believe that the VP simply takes control of this unless explicitly noted by the president, no?
i.e. when I got injured a bit ago and reaffirmed that gold was acting president, i assumed it was a redundant act

CommradePotatoe:
how much time can the president be verifiably unavailable? is 3 days okay? 4? should we assume that 2 days are the absolute limit and anything beyond that is not reasonable?

Brick_WallGaming
i think 3 days should be the general limit in the scenario that it's always, and specifically that it's either weekends, or other days that cause normal presidential duties, such as verifying citizens, or NF members.
If the president was only unavalable for one or two weekends due to IRL obligations this would be completley fine and it can simply be deffered. But due to NF members needing to be elected on the next avalable saturday iirc, this can cause issues

CommradePotatoe:
Doesn't the Moi handle nf elections?

(4) The Minister of the Interior must designate a public channel, which must be easy for all citizens to access and utilise, to facilitate—

(a) the nomination of citizens for election to the National Forum;

(b) the declaration of candidacies for election to the National Forum; and

(c) indications of support for nominations or candidacies.

(5) A citizen intending to stand for election to the National Forum must register their candidacy through the channel designated by the Minister of the Interior in terms of Subsection (4).

(6) A candidate for election to the National Forum may deregister their candidacy at any time.

(7) The Minister of the Interior must—

(a) deregister any candidacy for election to the National Forum, as soon as possible after the registration of such a candidacy, where the candidate is not eligible to stand for such office; and

(b) promptly submit, through the channel designated in terms of Subsection (4), written reasons explaining any decision to deregister a candidacy for election to the National Forum to the

Brick_WallGaming:
ah i appear to be mistaken then
i may be thinking of cabinet members
my mistake

CommradePotatoe:
All good.
There are still duties that the president would be unable to fufill assuming they are always absent each weekend
at least on those weekends

Brick_WallGaming:
a question adjecent to this that i should ask
what timezone does CDM officially operate under?
in the scenario i was president for example, i'm generally ahead of other people within the nation
so if iwas to do weekend specific tasks, they would fall on a friday for many other citizens

CommradePotatoe:

> 174. Standardisation of dates
> Any dates in this Constitution must be construed to begin and end according to Greenwich Mean Time.

GMT

Brick_WallGaming
ty]

CommradePotatoe:
I think we shouldn't limit this case to just weekends, but instead, "2 days" people could say have schedules that leaves them unavailable on Monday and Tuesday

Brick_WallGaming
i can agree to this, i think it needs to be two consistent days that the president cannot be avalable in a manor that it would interfere with the orderly running of the nation
if someone had work on say, a monday and a thursday
that would likley not interfere with orderly operations
(assume that work is either the entire day for the sake of the hypothetical, or the president is exhausted enough after work to simply not want to interact with cdm, this is still a video game community after all)
i think the simplest solution is, in these scenarios where the president would not be avalable, the Vice President would default to Acting President, unless the President decides to name another person AP in those scenarios

CommradePotatoe:
I would like to continue with this conversation just because, 3 days is around 42% of the week (and for reference, 2 days is ~28%). If we assume that remains constant throughout someone's term, that's a significant amount of time the president isn't fulfilling their duties

Brick_WallGaming
that is true
i would like your opinion on the matter then regarding this being completley consistent

this was a simple hypothetical after all
i don't intend to push legiislation regarding this

CommradePotatoe:
the way I see it, there are always lots of angles that come up in governance, even to seemingly simple questions
Im not sure whether we need to designate an acting president if the cabinet can simply "handle things" for the weekend. I'm also not sure if 2 days each and every week is reasonable amount of time that the president can be unavailable
I tend to view the AP as something implemented when the Pres is gone for an extended period of time
if we assume that its okay for a president to be absent for a gaurenteed amount of time each week, does this court actually need to decide anything, or should this be up to the cabinet to decide for itself?
Section 88 tells us that the president can appoint an AP whenever they deem it necessary, so is there much to decide beyond affirming the president's ability?

Brick_WallGaming
probably not no

IceCarim:
So let me raise the question that I think is really at the heart of this hypothetical
If we have a presidential ticket who says to the population
Player A is running for President, B for Vice President
But on the weekends, B will be President
Is that a situation the Constitution allows?
Or to ask it another way: does the Constitution allow a President, by agreement with the citizenry (which is sort of what being elected is), to design a split of power different to what’s imagined by the Constitution?

(end)